



PROBATE • INSIGHT

What Actually Happens During Probate, A Plain-English Walkthrough

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Probate is the court process that settles someone's estate after they pass away, and it runs on its own timeline regardless of how carefully or carelessly the person planned ahead. Understanding the process before you are in the middle of it makes a genuinely difficult time slightly less overwhelming.

Probate and estate planning are not the same thing

Estate planning happens before death, probate happens after. A well-built estate plan, particularly one using a funded living trust, can reduce or avoid probate entirely. But once someone has passed away without that structure in place, probate is usually the path forward, whether or not there was a will.

The court has to formally appoint someone to act

Even if a will names an executor, that person typically has no legal authority to act until a probate court formally appoints them. If there is no will, the court appoints an administrator, usually a close family member, following that state's intestacy priority rules.

Creditors get a window to make claims

Part of probate involves publishing notice to potential creditors and giving them a defined window to file claims against the estate. Sorting valid debts from invalid ones, and making sure the estate is not paying claims it does not actually owe, is a meaningful part of an executor's job.

Will contests happen more often than people expect

Disputes among heirs, questions about a will's validity, or concerns about undue influence can turn a routine probate into a contested one. These cases move slower and cost more, which is exactly why a clear, properly executed will matters as much as having one at all.

Some estates qualify for a faster path

Many states offer simplified or small estate procedures for estates under a certain value, which can meaningfully shorten the timeline and reduce cost. Whether an estate qualifies depends on its size and what it holds, so it is worth checking before assuming the full process applies.

If you have just been named an executor or you are trying to figure out what happens to a loved one's estate, the earliest and most useful step is usually a straightforward conversation about what the estate actually involves.

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